

WRITTEN SUBMISSIONS · 14 DEC 1999

Appeal submissions — Collorafi

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PARTIES

From Bernard Collorafi and his companies

SUMMARY SHEET

Consolidated appeal written submissions after the expert report — SEBOL, B et O, LES PINS, Collorafi · 14 December 1999

Overview: consolidated written submissions after the expert report (no. 2) filed before the 16th chamber A of the Paris Court of Appeal (RG 98/14119) on behalf of the companies SEBOL, B et O, LES PINS and Bernard Collorafi (Maître Jean-Paul Clément, avocat, and Maître Rémi Pamart, avoué), against McDonald's France.

Key points

The written submissions concern the appeal lodged on 26 May 1998 against the judgment of the Paris Commercial Court of 18 May 1998, which had dismissed the appellants' claims, recorded the automatic termination of the lease-management (location-gérance) and licence agreements as of 2 January 1998 by operation of the termination clause, ordered the eviction and imposed orders to pay unpaid fees and occupation indemnities. The appellants ask that McDonald's be ordered to compensate their loss:

- SEBOL: 9,600,000 F, plus 1,540,868 F in losses;
- B et O: 22,200,000 F, plus 2,743,103 F in losses;
- LES PINS: 13,250,000 F, plus 567,568 F in losses;
- fixed assets at their book value: 4,528,333 F in total;
- Bernard Collorafi: 7,740,000 F for material damage and 2,000,000 F for non-material damage.

In addition there are 2,000,000 F of further damages for each company and for Mr Collorafi, alternative claims for interim payments, 100,000 F per party under article 700 of the NCPC and all costs.

Significance

The central pleadings of the franchisee's appeal: they quantify all the compensation claims made against McDonald's after the expert report and define the subject of the debate before the Court.

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